

12	30-2024-01380394 Martinez vs. Legends Hospitality, LLC	Off Calendar
14	30-2021-01234635 Bren vs. Emerald Bay Community Association	<u>I. Motion to Compel Inspection of Property</u> Defendant Emerald Bay Community Association's Motion to Compel Inspection of Property is GRANTED. Defendant's Request for Monetary Sanctions is DENIED. The court OVERRULES Plaintiffs' objection to the declaration of Joshua Shayne, Defendant's counsel, as to the hours he spent on this Motion, as the objections go to the merits of the statements and not their admissibility. On February 19, 2026, an inspection of Plaintiffs' property was noticed for April 6, 2026. (Shayne Dec., Ex. B.) Plaintiffs served objections to the notice on March 24, 2026. (<i>Id.</i>, Ex. C.) The court finds that Plaintiffs' objections are without merit: • <u>Overbroad vague and ambiguous; burdensome, harassing and oppressive; not calculated to lead to the discovery of admissible evidence</u>: Here, Plaintiffs have clearly put at issue the condition of their property and the construction around it by Defendant. Plaintiffs allege that Defendant's regrading of Lot H has interfered with Plaintiffs' use and enjoyment of their property due to concerns and issues related to privacy, security and the risk of slope failure, and allege a loss of property value as a result. An inspection of the subject property and an appraisal is necessary for Defendant to evaluate Plaintiffs' claims and to prepare its defense. Defendant's reasonable request is not vague, ambiguous, burdensome, or harassing. • <u>Invasion of Plaintiffs' privacy</u>: Defendant's need for the discovery outweighs the right to privacy especially as Plaintiffs have put their property at issue in this litigation.